

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: June 1, 2026

Time: 2:00 PM

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1	Quach v. Wright et al	The unopposed Motion to Substitute Ty Quach In Place Of Deceased Plaintiff, John Quach, filed on 4/24/26, is GRANTED. The Motion and supporting declarations filed therewith demonstrate that Plaintiff John Quach ("Plaintiff") died on 3/25/26, that Ty Quach is decedent's adult son, that the decedent's wife and other adult child agree that Ty Quach should substitute in for decedent here, and that Ty Quach has agreed to do so. The Motion also adequately complies with C.C.P. § 377.32. Ty Quach is therefore substituted into this action as Plaintiff, as successor in interest to decedent. Counsel for Plaintiff to give notice.
2	Trejo v. Trejo	Before the Court is a motion for summary judgment filed by cross-complainants Maria Guadalupe Trejo (Maria), Juan Manuel Trejo (Juan) and Luis Angel Vasquez (Luis)(collectively, Cross-Complainants) on their first amended cross-complaint (FACC) against cross-defendant Carmen Trejo (Cross-Defendant). For the reasons set forth below, the motion is GRANTED. Cross-Complainants' request for judicial notice (RJN) is GRANTED. A plaintiff seeking summary judgment must produce admissible evidence sufficient to demonstrate that it is entitled to judgment as

a matter of law. (Code of Civ. Proc. § 437c(c), (p)(1).) If the plaintiff meets that initial burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists. (*Id.*)

To prevail on a claim to cancel an instrument, a plaintiff must prove (1) the instrument is void or voidable; and (2) there is a reasonable apprehension of serious injury including pecuniary loss or the prejudicial alteration of one's position. (*Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1193-1194; Civ. Code § 3412.)

Cross-Complainants have shown the quitclaim deed recorded on April 5, 2011 ("2011 Deed") transferring Maria's ownership in the property 1226 S. Flower Street, Santa Ana, CA 92707 and the quitclaim deed recorded on April 8, 2024 ("Corrective Deed") correcting spelling errors in the 2011 Deed are void because she did not have the present intent to transfer ownership at that time but intended to have the deeds to take effect upon her death. (*Meyer v. Wall* (1969) 270 Cal.App.2d 27 ["A deed delivered with the intent that it shall take effect only on the death of the grantor is an attempted testamentary disposition and therefore void"]; Cross-Complainants Statement of Undisputed Material Facts ("UMF") 3-14; RJN, Exs. C, D, E.)

To show reasonable apprehension of injury, Cross-Complainants argue the 2011 Deed and Corrective deed have increased property tax liability on the subject property. However, they produced no evidence showing property taxes have actually increased. Nevertheless, as pointed out by Cross-Complainants, Cross-Defendant has sued Maria, Juan and Luis based on the 2011 Deed and Corrective Deeds, showing legal prejudice and reasonable apprehension of serious injury if the deeds are left outstanding. (ROA 11.) Cross-Complainants met their initial burden on both elements of their claim for cancellation of instruments, and the burden shifted to Cross-Defendant to show a triable issue of fact.

To establish a triable issue of material fact, the party opposing a motion for summary judgment must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166; *Uhrich v. State Farm Fire & Cas. Co.* (2003) 109 Cal.App.4th 598, 616.) Contrary to Cross-Defendant's contention, Maria's declaration is not the only evidence showing Maria's state of mind, as Cross-Complainants have also produced the declarations of Juan, Luis and Alejandro as well as the quitclaim deed recorded on April 25, 2024 which show Maria did not have the present intent to transfer ownership with the 2011 Deed and Corrective Deed. (UMF 8-14; RJN, Ex. E.) Thus, their credibility is not considered. (Code of Civ. Proc. § 437c(e).)

The only evidence produced by Cross-Defendant as to Maria's intent is Cross-Complainants Joint Discovery Declaration ("Joint Declaration") produced in this action. (Declaration of Brian P. Ballo, Ex. A.) However, the facts stated in the Joint Declaration corroborate Cross-Complainants' position that Maria did not have the present intent to transfer ownership with the 2011 Deed and

		Corrective Deed. Cross-Defendant's evidence on property tax liability is moot, because Cross-Complainants failed to produce sufficient evidence on that point. Cross-Defendant failed to meet her shifted burden showing a triable issue of material fact. The motion is therefore GRANTED. Cross-Complainants shall give notice of this ruling.
3	Wyant vs. Marks	Defendant A Better Life Recovery, LLC's ("Defendant") unopposed Application for Pro Hac Vice Admission of Daria A. Porta (Porta) is GRANTED. Defendant has complied with the requirements of CRC Rule 9.40. The court hereby approves the application and orders that Porta may be admitted on a pro hac vice basis in this case. Defendant to give notice.
4	Saracino v. Rzakhanova	The motion to strike the complaint of plaintiffs Katalena Saracino and Mohammed Awad (collectively, Plaintiffs) pursuant to Code of Civil Procedure section 425.16 filed by defendant Gulzhanat Rzakhanova (Defendant) is DENIED. "Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [Citation.] If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success." (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385, 205, fn. omitted.) Only a claim that satisfies both prongs - i.e., that arises from protected speech or petitioning and lacks even minimal merit - can be stricken under the SLAPP statute. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88-89; <i>Jarrow Formulas, Inc. v. LaMarche</i> (2003) 31 Cal.4th 728, 733.) Prong One: "At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them." (<i>Baral, supra</i>, 1 Cal.5th at p. 396.) "A claim arises from protected activity within the meaning of section 425.16(b)(1) if the activity underlies or forms the basis for the claim." (<i>Newport Harbor Offs. & Marina, LLC v. Morris Cerullo World Evangelism</i> (2018) 23 Cal.App.5th 28, 44.) Where there are "mixed" causes of action involving both protected and nonprotected activity, it is the moving party's burden to identify in the motion the allegations of protected activity and the claims arising from it. A motion directed only to an entire complaint may be denied if some claims involve nonprotected activity. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, §7:772, citing <i>Baral, supra</i>, 1 Cal.5th at 391; see also, <i>Park v. Nazari</i> (2023) 93 Cal.App.5th 1099, 1108 n.5.) Here, in the notice of motion, Defendant moved for an order striking Plaintiffs' complaint in its entirety and dismissing this action with prejudice. (See Notice of Motion at p. 2:1-3.) Defendant maintained in the memorandum of points and authorities that Plaintiffs' entire

complaint arises from protected activity and the entire complaint should thus be stricken. (See e.g., Motion at p. 9:2-3, 14:14-19.) Defendant did not identify any limited set of allegations in the complaint that should be stricken if the entire complaint is not.

The court concludes the complaint contains claims that do not arise from protected activity. For instance, the complaint alleges Defendant released a private, intimate recording of Plaintiff Awad which caused Plaintiffs to suffer humiliation, fear, and harm to their reputation and emotional well-being. (See Compl., ¶¶ 16-20.) Plaintiffs also allege in the complaint, under the heading "Trespass, Property Damage, and Theft," that Defendant unlawfully entered their residence and removed or destroyed property, including clothing and furniture. (See Compl., ¶ 34.) Defendant did not address these allegations or show how such allegations can be deemed to pertain to protected activity. Furthermore, although the caption of the complaint states the complaint is one for "defamation of character," the body of the complaint specifically states at paragraph 50 that "Plaintiffs assert civil causes of action for" Fraud, Defamation (Libel & Slander), Intentional Infliction of Emotional Distress, Invasion of Privacy, Negligence, and Trespass and Conversion. (Compl., ¶ 50.)

Defendant completely failed to address these allegations and claims. In the Reply, Defendant argues Plaintiffs' opposition improperly attempts to rewrite the complaint which Defendant asserts is based on a defamation theory. Defendant is correct that unpled theories cannot defeat an anti-SLAPP motion. (See *Medical Marijuana, Inc. v. ProjectCBD.com* (2020) 46 Cal.App.5th 869, 883.) However, as discussed above, Plaintiffs' complaint plainly shows that Plaintiffs are asserting other causes of action in addition to the defamation claim. Defendant failed to offer any discussion as to how these additional causes of action arise from protected activity. In the Reply, Defendant reiterated her request that the entire complaint be stricken. (See Reply at p. 10:9-11.)

Defendant also appears to acknowledge that the complaint contains allegations pertaining to nonprotected activity. (See Motion at p. 8:3-7; p. 11:22-24.) Despite appearing to acknowledge these allegations of nonprotected activity, Defendant nonetheless maintained her request to strike the entire complaint. To the extent Defendant contends the allegations related to nonprotected activity fail to state a claim, Defendant has not shown how the court can properly dismiss such claims pursuant to an anti-SLAPP motion. These challenges appear more appropriately raised on a demurrer or motion for judgment on the pleadings.

Based on the foregoing, Defendant failed to meet her burden on prong one as Defendant has not shown the entirety of the complaint arises from protected activity.

Accordingly, the motion is **DENIED**.

Defendant's Request for Judicial Notice: As to Exhibits 1, and 3 through 6, and Defendant's supplemental request for judicial notice,

		the request is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d) [court records]; <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Defendant has not shown judicial notice of the transcript (Ex. 2) is proper. Defendant's request for judicial notice as to Exhibit 2 is thus DENIED. <u>Plaintiffs' Request for Judicial Notice:</u> To the extent Plaintiffs seek judicial notice of court pleadings, filings, and orders, the request for judicial notice is GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Ev. Code §452(d) [court records]; <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Plaintiffs' request for judicial notice is DENIED to the extent it seeks judicial notice of declarations and evidentiary materials, including the private investigator report, as Plaintiffs have not shown such materials are proper subjects of judicial notice. <u>Evidentiary Objections:</u> Defendant's Objection No. 1 is SUSTAINED. Defendant's Objection Nos. 2-3 are OVERRULED. Defendant's Objection Nos. 4-20 are SUSTAINED as to lack of authentication. <u>Request to Strike, Seal, or Redact (ROA 37):</u> Given the court's ruling to sustain Defendant's objections to Plaintiffs' exhibits, it does not appear to the court that a separate order striking the materials as requested is necessary. To the extent Defendant seeks an order sealing the materials under California Rules of Court, rules 2.550 and 2.551, the request is not properly supported as no declaration was submitted with the request. (See CRC rule 2.551(b)(1) [motion to seal must be accompanied by a declaration containing facts sufficient to justify the sealing].) The request to seal or redact is DENIED without prejudice. Counsel for Defendant shall give notice.
5	Cali Dumpling Management, LLC v. Star Leaf Oto, et. al	The application by plaintiff Cali Dumpling Management, LLC for a right to attach order against defendant Star Leaf Oto, LLC is DENIED, without prejudice. There is no proof of service in the Court's file showing that either the complaint or the application have been served on Star Leaf Oto, LLC. (Code of Civil Procedure §482.070; Cal. Rules of Court, rule 3.1300(c) - proof of service must be filed at least five court days prior to the hearing.) Plaintiff shall give notice.
6	Jahangiri v. Vahidramezani	Cont. to 8/31.
7	Hallett v. Waterfront Resort	Before the Court at present is the "Motion For Order Requiring Vexatious Litigant And Pro-Per Plaintiff Darrell Hallett To Furnish Security Pursuant To CCP §391.3," filed on 12/23/25 by defendants

Properties, LP et al	Waterfront Resort Properties LP, De Anza Corporation, Newport Dunes Resort and Marina Partnership, Dunes Resort LP, Dunes Resort LLC, Terra Vista Management Inc. and Phillip Ravenna ("Defendants"). The Motion is DENIED. As a preliminary matter, there are numerous defects in the papers presented by Plaintiff Darrell Hallett ("Plaintiff") in opposition to the motion. Plaintiff's original opposition papers were untimely. Plaintiff then attempted to submit a number of even more untimely amendments and supplements, including an additional set of "supplemental exhibits" filed on 5/28/26. The Court will exercise its discretion to consider the slightly tardy submissions presented by Plaintiff on 4/8/26, but will not consider Plaintiff's additional submissions presented thereafter. Plaintiff's Opposition brief also grossly exceeded permissible page limits, in violation of C.R.C. 3.1113(d), and lacks the required tables of contents and authorities, in violation of C.R.C 3.1113(f). The Court will therefore consider only the initial 15 pages of argument presented in ROA 303. Plaintiff is reminded that future compliance with all filing deadlines, page limits, and all other filing requirements is expected, and that future violations may result in a refusal to consider such improper submissions. However, the Motion fails on the merits here. Defendants seek an order, under C.C.P. § 391.1, requiring Plaintiff to furnish security. Defendants must thus show that Plaintiff, who has already been deemed a vexatious litigant, has no "reasonable probability" of prevailing in this action. The court may weigh the evidence presented on the motion. (<i>Moran v. Murtaugh Miller Meyer & Nelson, LLP</i> (2007) 40 Cal.4th 780, 782.) But Defendants bear the burden of proving that Plaintiff has no reasonable likelihood of prevailing on <u>any</u> of the causes of action that he has presented here. (<i>Golin v. Allenby</i> (2010) 190 Cal.App.4th 616, 641.) Defendants have failed to meet that burden here. Plaintiff's Third Cause of Action asserts a claim for violation of Civil Code §1671. Plaintiff asserts therein that Defendants charged him \$5,325 for a total of 71 daily late fees, in violation of Civil Code §1671. (Complaint, ¶¶ 79 – 110, 202-203.) Plaintiff also asserts that Defendants "cancelled" his future reservations due to nonpayment, and offered to refund \$1,052.78 in late fees only if he agree to certain conditions. (Complaint ¶¶ 175-179.) Defendants have failed to fully address those assertions, arguing instead that they offered to refund "the only late fees actually and inadvertently collected from him in the amount of \$302.87." (ROA 141, p. 11; Ravenna Decl., ¶¶ 8-10.) But Defendants have failed to provide any evidence to show what late fees were assessed when, which were actually paid, and how they calculated the refund. Nor have they presented authority to establish that merely refunding the collected portion of an allegedly unlawful fee would suffice to avoid any liability under §1671, and for any related claim based thereon. Plaintiff's Opposition asserts, without offering any actual testimony or other evidence to support the claim, that he actually paid \$600 in late fees. But even without any admissible evidence from Plaintiff to
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		refute Defendants' claims as to the amount collected, Defendants have failed to meet their burden for the Third Cause of Action. The Motion therefore is DENIED. Counsel for Defendants to give notice of this ruling.
8	Hashimi v. American Honda Motor Co., Inc.	O/C
9	Vo v. Strawberry Pond Healthcare, LLC	The unopposed Petition of Kristie Vo to Maintain Elder Abuse/Neglect Action in the Name of Hang Vo, Deceased is GRANTED. Ms. Vo has submitted a declaration which satisfies the requirements of Code of Civil Procedure section 377.32. (<i>See generally</i> Declaration of Kristie Vo attached as Exhibit A to motion.) The motion is thus GRANTED. (Wel. & Inst. Code, § 15657.3(d).) Counsel for Ms. Vo is to submit a proposed order and is to give notice of this ruling.
10	Rancho Domingo Townhomes Community Assn. v. Azardmard	O/C
11	Creditors Adjustment Bureau, Inc. v. Matsunaga Enterprise, Inc.	O/C
12	Smith v. Kia America, Inc.	A) Demurrer Defendant Kia America, Inc.'s ("Defendant") Demurrer to plaintiff Wayne D. Smith's ("Plaintiff") First Amended Complaint ("FAC") is OVERRULED. Defendant demurs to the fifth cause of action ("COA") for Fraudulent Inducement – Concealment based upon lack of sufficient facts (Civ. Proc. Code § 430.10(e)), uncertainty (Civ. Proc. Code § 430.10(f), and the Economic Loss Rule ("ELR"). Sufficiency of Facts and Uncertainty "California case law similarly has viewed fraud by concealment on equal footing with fraud by affirmative misrepresentation. " 'Where failure to disclose a material fact is calculated to induce a false belief, the distinction between concealment and affirmative misrepresentation is tenuous. Both are fraudulent.' " [Citations.] "[I]ntentional concealment of a material fact is an alternative form of fraud and deceit equivalent to direct affirmative misrepresentation." " " (<i>Rattagan, supra</i>, 17 Cal. 5th at 39–40.)

"The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (*Rattagan, supra*, 17 Cal. 5th at 40.)

"A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)." (*Id.*, at 40.) "Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as "between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances." [Citation.] "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." " (*Id.*, 40-41.)

California also requires that fraud must be alleged with specificity. (*Rattagan, supra*, 17 Cal.5th at 43.) The requirement provides an important safeguard against the risk of tort recovery for fraud in every case involving conduct occurring during a contractual relationship. (*Id.*) "When affirmative misrepresentation fraud is alleged, "This particularity requirement necessitates pleading *facts* which 'show how, when, where, to whom, and by what means the representations were tendered.' " (*Id.*)

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. (*Rattagan, supra*, 17 Cal.5th at 43.) "The court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts, as Rattagan has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and

(5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. "[M]ere conclusory allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] ... are insufficient for the foregoing purposes." (Id., at 43-44.)

Plaintiff alleged the vehicle experienced engine defects, transmission defects, electrical defects, and others. (FAC ¶ 15.) The defects substantially impaired the use, value, or safety of the vehicle. (FAC ¶ 16.) Plaintiff alleged Defendant was aware of issues with the subject engine through internal data, testing data, consumer complaints, repair orders, testing, and other Defendant exclusive sources, and its related components and concealed them from Plaintiff. (FAC ¶¶ 50-51, 55, 61-63, 74.) The defects can result in loss of power, stalling, engine running rough, engine misfire(s), failure or replacement of the engine. (FAC ¶¶ 51, 52.) The defects were not reasonably discoverable prior to purchase. (FAC ¶¶ 60, 67.) Defendant continued to conceal the issues with the engine. (FAC ¶¶ 70, 72.) Defendant's repair strategy was to authorize only minor and ineffective repairs, which benefitted Defendant because consumers would have to pay for repairs after the warranty ended. (FAC ¶ 75.)

Prior to purchasing the vehicle, Plaintiff reviewed Defendant's marketing and advertising materials, vehicle-specific window sticker, and took the vehicle for a test drive prior to purchase, but at no point was Plaintiff advised the engine was defective. (FAC ¶ 11.) Plaintiff purchased the vehicle from authorized dealership Folsom Lake Kia which conveyed information to Plaintiff using methods Defendant directed such as marketing brochures and floor displays. (FAC ¶¶ 8-11.) If Plaintiff had known of the defects at the time of the sale, Plaintiff would not have purchased the vehicle. (FAC ¶¶ 58, 64.) Plaintiff did not expect Defendant to fail to disclose such defects or to sell/lease vehicles with known safety defects. (FAC ¶¶ 65, 69.)

Plaintiff has pled sufficient facts at this stage to support this COA. (*Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal. App. 5th 828, 844.) The demurrer is **OVERRULED** as to sufficiency of facts and uncertainty

Economic Loss Rule

The ELR provides that, in general, there is no recovery in tort for negligently inflicted "purely economic losses," i.e., meaning financial harm unaccompanied by physical or property damage. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 837.) For claims arising from alleged product defects, economic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profit, without any claim of personal injury or damages to other property. (Id.) "The economic loss rule "has been applied in various contexts. First, it carries force when courts are concerned about imposing "liability in an indeterminate amount for an indeterminate time to an indeterminate class." " [Citation.] [¶] Second, "[i]n another recurring set of circumstances, the rule functions to bar claims in

negligence for pure economic losses in deference to a contract between litigating parties.” [Citations.] The Restatement states this form of the economic loss rule as follows: “[T]here is no liability in tort for economic loss caused by negligence in the performance or negotiation of a contract between the parties.” (*Dhital, supra*, 84 Cal. App. 5th at 837–38.) The ELR does not limit recovery for intentional tort claims like fraudulent inducement if the plaintiff can plead the elements independent of the contract. (*Id.*, at 839.)

As Plaintiff has pled the elements of fraudulent inducement independent of the contract, the economic loss rule does not apply. The demurrer is **OVERRULED** regarding the economic loss rule.

B) Motion to Strike

Defendant’s Motion to Strike is **DENIED**.

A party may move to strike a portion of the complaint, which the court may grant at its discretion to strike out any irrelevant, false, or improper matter inserted in any pleading or any part of any pleading not drawn or filed in conformity with the laws of this state. (Civ. Proc. Code §§ 435(b)(1) and 436.)

Defendant requests the court strike the following from the Prayer in FAC:

- “e. For punitive damages;” (FAC at p. 12:17.)

Defendant’s initial argument is the fraud cause of action of the FAC is barred by the ELR and the fraudulent concealment cause of action is uncertain and does not state sufficient facts. These arguments were not compelling as noted in the demurrer analysis above. Plaintiff has sufficiently pled a cause of action for fraud, which would support a punitive damage claim under Civ. Code § 3294(c). Punitive damages under Civ. Code § 3294 may not be recoverable for a breach of contract, however they are available where a defendant fraudulently induces the plaintiff to enter into a contract. (*Walker v. Signal Companies, Inc.* (1978) 84 Cal. App. 3d 982, 996; *Las Palmas Assocs. v. Las Palmas Ctr. Assocs.* (1991) 235 Cal. App. 3d 1220, 1238–39.)

As: 1) Plaintiff has pled a viable cause of action for fraud; 2) the punitive damage request may be based upon that fraud cause of action for acts Defendant took to induce a Plaintiff to purchase/lease the vehicle; and 3) as punitive damages under Civ. Code § 3294 may be recovered for acts taken to fraudulently induce a Plaintiff into the purchase/lease of the vehicle, the punitive damage request is viable.

The motion is **DENIED**.

Plaintiff to give notice.

13	Rojas v. Alamirad Dental Corp	Before the Court are the following motions on the cross-complaint ("XC") of cross-complainants Farzan Alamirad ("Alamarid") and Alamarid Dental Corp. APC ("Alamarid Dental"): 1) demurrer filed by cross-defendant Elizabeth Rojas ("Rojas"); 2) demurrer filed by cross-defendants Kevin Badii, DDS and Compass PCG, LLC ("B/C") and joinder by Rojas; 3) demurrer and motion to strike filed by cross-defendant Ali Imani ("Imani"). For the reasons set forth below, each of the three demurrers is SUSTAINED with 20 days' leave to amend. The motion to strike is moot. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code of Civ. Proc. § 430.10, subd. (e).) A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (Code of Civ. Proc. § 430.10, subd. (f).) A special demurrer also lies where there is a defect or misjoinder of parties. (Code of Civ. Proc. § 430.10, subd. (d).) <u>Demurrer by Rojas:</u> The cross-complaint by Alamirad Dental is defective because Alamirad cannot bring the action "on behalf of Alamirad Dental Corp.," as doing so would constitute the unauthorized practice of law. (Bus. & Prof. Code § 6125.) In addition, the legal theories for "intentional interference with business relations" and "stealing business secrets" are vague and ambiguous. To the extent Alamirad intended to allege intentional interference with contractual relations and/or misappropriation of trade secrets, the elements of such claims are not properly alleged. (<i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55 [elements of intentional interference with contractual relations]; <i>Silvaco Data Systems v. Intel Corp.</i> (2010) 184 Cal.App.4th 210, 220 [elements].) The elements of fraud are not pleaded with the requisite specificity. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 32 [elements]; <i>Lazar v. Sup. Ct. (Rykoff-Sexton, Inc.)</i> (1996) 12 Cal.4th 631, 645 [fraud must be pled with specificity].) The claims for conversion and breach of fiduciary duty appear to belong to the corporation, not Alamirad individually; the claims by the corporation are defective as set forth above. Alamirad failed to oppose the demurrer, thereby conceding the merits. (<i>Herzberg v. County of Plumas</i>, (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) The demurrer is therefore SUSTAINED with 20 days' leave to amend. <u>Demurrer by B/C:</u> A cross-complaint against anyone other than the plaintiff must relate to the subject matter or transaction alleged in the plaintiff's
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	complaint. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 6:500; Code Civ. Proc., § 428.10, subd. (b).) Here, plaintiff Rojas’ claims against Alamirad and Alamirad Dental are employment-related and arise out of conduct occurring while she was employed by them from June 5, 2024 to September 22, 2024. (Compl. ¶¶ 8-22.) By contrast, the cross-claims asserted against B/C primarily arise out of alleged breaches and fraudulent representations in connection with the sale of the dental practice to cross-complainants in October 2023. (XC at pp. 3-6.) Most of the claims against B/C involve a commercial dispute unrelated to Rojas’ employment or the subject matter of Rojas’ complaint. The only cause of action against B/C in the cross-complaint that potentially relates to Rojas’ employment is the 7th cause of action for “stealing business secrets.” (XC at p. 8.) However, that claim is not properly alleged, as discussed above. The demurrer is therefore SUSTAINED with 20 days’ leave to amend as to the 7th cause of action and SUSTAINED without leave to amend as to all other causes of action. <u>Demurrer and Motion to Strike by Imani:</u> All of the causes of action against Imani are insufficiently pled. The elements of fraud are not pleaded with the requisite specificity. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 32 [elements]; <i>Lazar v. Sup. Ct. (Rykoff-Sexton, Inc.)</i>(1996) 12 Cal.4th 631, 645 [fraud must be pled with specificity].) Alamirad also fails to adequately allege the elements of conversion and civil conspiracy against Imani. (<i>Lee v. Hanley</i> (2015) 61 Cal.4th 1225, 1240 [elements of conversion]; <i>Doctors’ Co. v. Superior Court</i> (1989) 49 Cal. 3d 39, 44 [elements of civil conspiracy].) Alamirad failed to oppose the demurrer, thereby conceding the merits. (<i>Herzberg v. County of Plumas</i>, (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566.) The demurrer is therefore SUSTAINED with 20 days’ leave to amend. The motion to strike punitive damages is moot. Counsel for Badii and Compass shall give notice of this ruling.
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